COMMERCIAL AGREEMENT - RECORD 013

Helioscope Robotics, Inc. - diligence file reference COMMERCIAL_CONTRACTS-013

1. Recitals and defined terms

This Data Processing and Security Exhibit is made between Helioscope Robotics, Inc. as Provider and Meridian Fulfilment Group Inc. as Customer, a apparel fulfilment business organised in Tennessee, contracting through Meridian Fulfilment Group Inc.. Meridian and the Provider have agreed that terms defined in the recitals and in Schedule 5 carry the same meaning throughout, and that a defined term used in an Order has the meaning given here unless the Order expressly varies it.

On a proper construction of Schedule 2, telemetry generated by a Unit belongs to the Provider, while data describing the Customer's operations, inventory or personnel belongs to the Customer, and neither licence extends beyond the term. On the wording, the provision survives termination for the period stated, and the survival is not conditional on the reason for termination. This bites at Meridian's 4 sites, since a apparel fulfilment operator administers the Data Processing and Security Exhibit where the units work. Administration of this obligation for Meridian sits with the account team rather than with central contracts, and Article 16 (Term and Termination) is where it is evidenced.

Meridian acknowledges that telemetry generated by a Unit belongs to the Provider, while data describing the Customer's operations, inventory or personnel belongs to the Customer, and neither licence extends beyond the term. Strictly, an estoppel does not arise from the Customer's forbearance, and a waiver is effective only in writing signed by an authorised officer. Meridian treats the obligation as a site-level matter across its 4 sites in Tennessee, consistent with the Data Processing and Security Exhibit. Meridian has taken the point up once since signature; the correspondence is filed against Article 15 (Limitation of Liability) and did not result in an amendment.

Meridian is not obliged, under Exhibit A, to accept that the limitation of liability applies to claims of every kind except those expressly carved out, and the carve-outs are exhaustive rather than illustrative. Strictly, an estoppel does not arise from the Customer's forbearance, and a waiver is effective only in writing signed by an authorised officer. The Data Processing and Security Exhibit reaches each of Meridian's 4 sites separately, which is how a apparel fulfilment operator in Tennessee administers it. Meridian has taken the point up once since signature; the correspondence is filed against Article 5 (Delivery and Title) and did not result in an amendment.

The Provider warrants to Meridian that the Provider notifies the Customer of a security incident affecting Customer data within the period stated in the security exhibit, with the facts then known and without waiting for completeness. As to enforcement, the obligation is absolute rather than reasonable-endeavours, and the drafting was amended at signature to make that plain. For Meridian, a apparel fulfilment operator running 4 sites out of Tennessee, the point matters because the Data Processing and Security Exhibit is administered site by site. Meridian has taken the point up once since signature; the correspondence is filed against Article 12 (Intellectual Property) and did not result in an amendment.

Meridian data processing exhibit - Schedule 2 - Sites and Operating Patterns

Meridian site reference	Location	Units	Go-live date	Operating pattern	Network provision	Acceptance status
MER-S001	Mesa facility	28	2026-01-11	single shift	Customer furnished	accepted with punch list
MER-S002	Larkspur facility	21	2024-03-23	single shift	shared	not commenced
MER-S003	Crestline facility	27	2026-03-18	two shifts	Customer furnished	accepted
MER-S004	Keystone facility	27	2025-03-24	continuous	Customer furnished	accepted
MER-S005	Evergreen facility	24	2024-02-23	single shift	Customer furnished	not commenced
MER-S006	Granite facility	35	2026-05-27	single shift	Provider furnished	accepted with punch list
MER-S007	Dayton facility	16	2026-02-09	two shifts	Provider furnished	not commenced
MER-S008	Dunbar facility	8	2024-08-18	single shift	Provider furnished	pending acceptance
MER-S009	Mesa facility	12	2026-03-18	single shift	Customer furnished	pending acceptance
MER-S010	Crestline facility	27	2025-07-22	two shifts	Customer	not commenced

Meridian site reference	Location	Units	Go-live date	Operating pattern	Network provision	Acceptance status
					furnished	
MER-S011	Dunbar facility	8	2026-08-09	continuous	Customer furnished	pending acceptance
MER-S012	Granite facility	25	2025-12-23	two shifts	Customer furnished	pending acceptance
MER-S013	Meridian facility	5	2025-01-22	single shift	Provider furnished	accepted with punch list
MER-S014	Fathom facility	10	2026-03-20	continuous	shared	accepted with punch list
MER-S015	Juniper facility	13	2024-03-18	two shifts	Customer furnished	accepted with punch list
MER-S016	Mesa facility	18	2024-08-15	continuous	Customer furnished	not commenced
MER-S017	Harborline facility	36	2025-04-07	continuous	shared	pending acceptance
MER-S018	Crestline facility	30	2025-04-04	two shifts	Customer furnished	pending acceptance
MER-S019	Meridian facility	25	2024-05-12	continuous	shared	accepted
MER-S020	Fathom facility	21	2026-08-12	two shifts	Customer furnished	accepted
MER-S021	Meridian facility	24	2025-09-18	single shift	shared	accepted with punch list
MER-S022	Fathom facility	12	2025-11-13	single shift	Provider furnished	accepted
MER-S023	Granite facility	9	2025-05-07	two shifts	shared	accepted with punch list
MER-S024	Evergreen facility	26	2025-01-18	two shifts	Provider furnished	pending acceptance
MER-S025	Juniper facility	21	2026-03-01	two shifts	shared	pending acceptance
MER-S026	Larkspur facility	25	2026-05-03	single shift	shared	accepted with punch list
MER-S027	Larkspur facility	17	2026-09-19	single shift	shared	accepted
MER-S028	Juniper facility	11	2024-05-23	continuous	Provider furnished	accepted
MER-S029	Juniper facility	29	2024-08-28	continuous	Provider furnished	not commenced
MER-S030	Evergreen facility	6	2025-07-21	continuous	shared	pending acceptance
MER-S031	Crestline facility	28	2026-10-07	two shifts	Customer furnished	accepted with punch list
MER-S032	Evergreen facility	39	2025-01-08	continuous	shared	accepted with punch list
MER-S033	Keystone facility	27	2024-03-15	two shifts	Customer furnished	accepted with punch list
MER-S034	Mesa facility	8	2026-07-20	two shifts	Customer furnished	accepted
MER-S035	Harborline facility	23	2025-10-11	two shifts	Provider furnished	accepted with punch list
MER-S036	Granite facility	39	2026-10-26	continuous	shared	pending acceptance
MER-S037	Dunbar facility	9	2024-03-13	continuous	shared	not commenced
MER-S038	Harborline facility	6	2026-04-05	two shifts	shared	accepted
MER-S039	Harborline facility	20	2026-05-22	single shift	Customer furnished	pending acceptance
MER-S040	Keystone facility	33	2026-10-16	two shifts	shared	accepted
MER-S041	Mesa facility	15	2026-08-15	two shifts	Customer furnished	accepted with punch list
MER-S042	Dunbar facility	25	2026-12-28	two shifts	Provider furnished	accepted
MER-S043	Juniper facility	27	2026-01-07	two shifts	Customer furnished	pending acceptance
MER-S044	Meridian facility	7	2026-12-17	continuous	Customer furnished	accepted
MER-S045	Crestline facility	36	2025-02-12	continuous	Provider furnished	accepted
MER-S046	Mesa facility	13	2026-11-01	two shifts	Customer furnished	accepted

Meridian site reference	Location	Units	Go-live date	Operating pattern	Network provision	Acceptance status
MER-S047	Dunbar facility	26	2024-12-15	single shift	Provider furnished	not commenced
MER-S048	Juniper facility	23	2025-08-07	single shift	Provider furnished	not commenced
MER-S049	Harborline facility	18	2024-05-21	two shifts	Provider furnished	not commenced
MER-S050	Crestline facility	7	2026-03-09	continuous	shared	accepted
MER-S051	Juniper facility	22	2025-07-11	continuous	Customer furnished	not commenced
MER-S052	Larkspur facility	15	2024-12-28	two shifts	Provider furnished	not commenced
MER-S053	Fathom facility	20	2024-05-27	single shift	Customer furnished	accepted with punch list
MER-S054	Mesa facility	25	2025-09-02	two shifts	Customer furnished	pending acceptance
MER-S055	Mesa facility	18	2024-06-15	continuous	Customer furnished	not commenced
MER-S056	Meridian facility	23	2026-09-05	single shift	shared	pending acceptance
MER-S057	Fathom facility	26	2026-04-23	continuous	Customer furnished	accepted
MER-S058	Fathom facility	38	2024-06-21	single shift	shared	accepted
MER-S059	Dunbar facility	4	2024-03-15	two shifts	Provider furnished	accepted with punch list
MER-S060	Juniper facility	28	2025-03-02	single shift	Provider furnished	accepted with punch list
MER-S061	Keystone facility	13	2024-11-18	continuous	Customer furnished	not commenced
MER-S062	Juniper facility	16	2024-05-15	continuous	Customer furnished	accepted
MER-S063	Keystone facility	28	2025-06-16	single shift	Customer furnished	accepted
MER-S064	Keystone facility	23	2025-09-17	single shift	Provider furnished	accepted with punch list
MER-S065	Keystone facility	6	2025-10-28	continuous	Provider furnished	not commenced
MER-S066	Crestline facility	31	2024-02-06	single shift	shared	not commenced
MER-S067	Keystone facility	6	2025-07-02	continuous	shared	accepted with punch list
MER-S068	Fathom facility	24	2025-10-10	continuous	Provider furnished	accepted with punch list
MER-S069	Evergreen facility	4	2025-02-05	continuous	Provider furnished	accepted
MER-S070	Larkspur facility	4	2025-07-10	single shift	shared	accepted
MER-S071	Juniper facility	13	2024-05-05	two shifts	Customer furnished	pending acceptance
MER-S072	Crestline facility	4	2025-11-07	two shifts	Customer furnished	accepted with punch list
MER-S073	Harborline facility	15	2024-02-16	continuous	Customer furnished	not commenced
MER-S074	Evergreen facility	34	2026-04-21	continuous	Provider furnished	accepted with punch list
MER-S075	Juniper facility	35	2024-03-23	continuous	shared	accepted with punch list
MER-S076	Keystone facility	23	2025-05-18	two shifts	shared	accepted with punch list
MER-S077	Dunbar facility	17	2024-06-01	two shifts	shared	pending acceptance
MER-S078	Keystone facility	39	2025-05-18	continuous	Customer furnished	pending acceptance
MER-S079	Evergreen facility	20	2025-02-25	two shifts	shared	accepted with punch list
MER-S080	Granite facility	33	2025-09-22	continuous	Provider furnished	accepted
MER-S081	Evergreen facility	36	2024-02-09	continuous	Provider furnished	pending acceptance
MER-S082	Granite facility	15	2025-06-13	two shifts	Customer furnished	not commenced
MER-S083	Harborline	17	2025-03-18	continuous	Customer	pending

Meridian site reference	Location	Units	Go-live date	Operating pattern	Network provision	Acceptance status
	facility				furnished	acceptance
MER-S084	Granite facility	7	2025-12-10	single shift	Provider furnished	pending acceptance

2. Scope of supply and orders

Under Article 16 (Term and Termination) of the Data Processing and Security Exhibit, telemetry generated by a Unit belongs to the Provider, while data describing the Customer's operations, inventory or personnel belongs to the Customer, and neither licence extends beyond the term. Intended effect: the remedy is exclusive for the breach it addresses, and does not displace remedies for a different breach of the same article. Site count matters here: Meridian has 4 sites, and the Data Processing and Security Exhibit treats each as a separate delivery point. The Meridian file records the position as at the last amendment, and Article 15 (Limitation of Liability) is the reference a reviewer should cite when raising it.

Meridian may require that on expiry the Provider provides transition assistance for the period stated, at the rates in the fee exhibit, and does not withhold cooperation pending a payment dispute. On the wording, a failure here is remediable, and the cure period runs from receipt of notice rather than from the breach itself. Running 4 sites in apparel fulfilment, Meridian takes this obligation at site level rather than centrally under the Data Processing and Security Exhibit. The Meridian file records the position as at the last amendment, and Article 15 (Limitation of Liability) is the reference a reviewer should cite when raising it.

Meridian Fulfilment Group Inc. is entitled to require that spare parts are held at the levels stated in the service exhibit, and a stock-out that causes downtime is treated as a Provider-caused outage for credit purposes. On this point, the mechanism is procedural: notice, a period to respond, and a defined consequence if the period passes without response. Running 4 sites in apparel fulfilment, Meridian takes this obligation at site level rather than centrally under the Data Processing and Security Exhibit. The obligation as it applies to Meridian was tightened at signature, and Article 19 (Confidentiality) carries the negotiated wording rather than the standard wording.

Meridian Fulfilment Group Inc. has notified the Provider that the Provider furnishes evidence of the insurances required before the first Unit is delivered, and maintains them for the term and for two years afterwards. Materially, the remedy is exclusive for the breach it addresses, and does not displace remedies for a different breach of the same article. Meridian treats the obligation as a site-level matter across its 4 sites in Tennessee, consistent with the Data Processing and Security Exhibit. The Meridian file records the position as at the last amendment, and Article 17 (Transition Assistance) is the reference a reviewer should cite when raising it.

3. Delivery, title and risk

Read with Exhibit C, spare parts are held at the levels stated in the service exhibit, and a stock-out that causes downtime is treated as a Provider-caused outage for credit purposes. In application, an estoppel does not arise from the Customer's forbearance, and a waiver is effective only in writing signed by an authorised officer. Running 4 sites in apparel fulfilment, Meridian takes this obligation at site level rather than centrally under the Data Processing and Security Exhibit. Because Meridian operates in apparel fulfilment, the practical burden of this clause falls on its Tennessee operation, and Article 5 (Delivery and Title) governs how it is measured.

Under Article 4 (Orders and Quantities) of the Data Processing and Security Exhibit, the Provider indemnifies the Customer against a third-party claim that the Units infringe an intellectual property right, and may procure a licence, modify, or replace to resolve it. Materially, performance is measured against the exhibit and not against any statement made in the parties' correspondence. For Meridian, a apparel fulfilment operator running 4 sites out of Tennessee, the point matters because the Data Processing and Security Exhibit is administered site by site. The Meridian relationship is managed against Article 7 (Service Levels) at each quarterly review, and any variance is minuted there rather than in the Order.

Subject to Article 13 (Licences), each Unit is delivered configured to the specification identified in the applicable Order, and a Unit delivered otherwise is not deemed delivered until reconfigured at the Provider's cost. On the negotiated text, a failure here is remediable, and the cure period runs from receipt of notice rather than from the breach itself. This

bites at Meridian's 4 sites, since a apparel fulfilment operator administers the Data Processing and Security Exhibit where the units work. Nothing in the Meridian negotiation history qualifies Article 19 (Confidentiality), and a reviewer should not read the pre-signature drafts as doing so.

Meridian has agreed, and the Provider has accepted, that personnel attending a site comply with the Customer's safety induction, and the Provider remains responsible for their acts whether they are employees or subcontractors. In substance, performance is measured against the exhibit and not against any statement made in the parties' correspondence. Site count matters here: Meridian has 4 sites, and the Data Processing and Security Exhibit treats each as a separate delivery point. The Meridian relationship is managed against Article 11 (Data and Telemetry) at each quarterly review, and any variance is minuted there rather than in the Order.

Meridian data processing exhibit - Schedule 3 - Deployment Milestones and Payment Triggers

Meridian milestone reference	Milestone	Planned	Slip days	Slip cause	Value attached	Payment trigger
MER-M001	site survey complete	2025-02	3	labour agreement	$50,136	no payment attached
MER-M002	steady-state handover	2024-08	21	seasonal freeze	$167,400	invoiceable on certification
MER-M003	units delivered	2024-11	13	no delay	$103,324	no payment attached
MER-M004	units delivered	2024-11	14	seasonal freeze	$202,768	invoiceable on acceptance
MER-M005	site survey complete	2026-09	3	seasonal freeze	$159,964	invoiceable on certification
MER-M006	pilot acceptance	2025-05	on plan	network provisioning	$179,686	no payment attached
MER-M007	pilot acceptance	2025-04	30	Customer IT dependency	$227,140	invoiceable on certification
MER-M008	steady-state handover	2025-06	on plan	labour agreement	$20,541	no payment attached
MER-M009	steady-state handover	2025-03	8	facility readiness	$260,375	no payment attached
MER-M010	site survey complete	2025-09	23	labour agreement	$262,498	no payment attached
MER-M011	units delivered	2026-09	32	no delay	$181,304	invoiceable on certification
MER-M012	warranty commencement	2026-05	14	Customer IT dependency	$181,107	invoiceable on certification
MER-M013	network readiness certified	2025-08	28	Customer IT dependency	$195,900	invoiceable on certification
MER-M014	full acceptance	2024-02	33	no delay	$117,898	no payment attached
MER-M015	pilot acceptance	2026-10	18	network provisioning	$138,717	invoiceable on acceptance
MER-M016	warranty commencement	2024-11	18	no delay	$269,249	invoiceable on acceptance
MER-M017	integration test passed	2025-12	31	labour agreement	$37,071	invoiceable on certification
MER-M018	warranty commencement	2025-05	1	Customer IT dependency	$97,085	invoiceable on certification
MER-M019	warranty commencement	2025-10	31	network provisioning	$182,585	invoiceable on acceptance
MER-M020	full acceptance	2024-02	19	seasonal freeze	$233,525	invoiceable on certification
MER-M021	network readiness certified	2026-05	33	network provisioning	$24,443	invoiceable on certification
MER-M022	site survey complete	2026-11	14	Customer IT dependency	$198,419	invoiceable on acceptance
MER-M023	warranty commencement	2025-02	31	no delay	$100,079	invoiceable on certification
MER-M024	units delivered	2024-03	4	facility readiness	$150,884	invoiceable on acceptance
MER-M025	site survey complete	2025-05	13	network provisioning	$251,010	no payment attached
MER-M026	steady-state handover	2024-03	9	network provisioning	$106,067	invoiceable on acceptance
MER-M027	network readiness	2026-03	1	labour agreement	$51,916	no payment

Meridian milestone reference	Milestone	Planned	Slip days	Slip cause	Value attached	Payment trigger
	certified					attached
MER-M028	network readiness certified	2025-07	18	Customer IT dependency	$33,343	invoiceable on acceptance
MER-M029	site survey complete	2024-10	18	facility readiness	$229,822	no payment attached
MER-M030	integration test passed	2024-03	30	Customer IT dependency	$202,133	invoiceable on certification
MER-M031	integration test passed	2024-06	25	labour agreement	$133,120	invoiceable on acceptance
MER-M032	network readiness certified	2024-10	16	no delay	$166,132	invoiceable on acceptance
MER-M033	site survey complete	2025-02	19	labour agreement	$78,017	invoiceable on certification
MER-M034	network readiness certified	2025-12	6	labour agreement	$184,501	invoiceable on certification
MER-M035	pilot acceptance	2024-12	17	no delay	$265,161	invoiceable on acceptance
MER-M036	warranty commencement	2026-07	7	labour agreement	$29,154	no payment attached
MER-M037	steady-state handover	2025-03	11	labour agreement	$37,603	no payment attached
MER-M038	steady-state handover	2025-12	22	no delay	$70,307	no payment attached
MER-M039	steady-state handover	2026-04	5	Customer IT dependency	$222,572	no payment attached
MER-M040	units delivered	2024-12	25	labour agreement	$248,357	invoiceable on certification
MER-M041	site survey complete	2025-10	30	network provisioning	$182,572	invoiceable on acceptance
MER-M042	steady-state handover	2025-04	31	network provisioning	$78,042	invoiceable on certification
MER-M043	full acceptance	2026-05	12	network provisioning	$235,829	no payment attached
MER-M044	site survey complete	2026-09	18	labour agreement	$245,796	no payment attached
MER-M045	warranty commencement	2025-05	26	no delay	$162,965	no payment attached
MER-M046	network readiness certified	2026-09	5	Customer IT dependency	$204,230	invoiceable on acceptance
MER-M047	warranty commencement	2026-05	20	facility readiness	$41,963	invoiceable on certification
MER-M048	network readiness certified	2024-02	6	facility readiness	$26,418	invoiceable on certification
MER-M049	integration test passed	2024-10	29	seasonal freeze	$268,204	no payment attached
MER-M050	units delivered	2025-05	2	seasonal freeze	$82,586	invoiceable on certification
MER-M051	pilot acceptance	2024-09	18	seasonal freeze	$173,901	invoiceable on certification
MER-M052	integration test passed	2024-11	4	no delay	$19,660	no payment attached
MER-M053	steady-state handover	2026-02	27	seasonal freeze	$54,310	invoiceable on certification
MER-M054	pilot acceptance	2025-12	23	facility readiness	$225,199	no payment attached
MER-M055	integration test passed	2025-11	on plan	network provisioning	$176,469	invoiceable on acceptance
MER-M056	warranty commencement	2024-10	2	labour agreement	$250,643	no payment attached
MER-M057	network readiness certified	2025-12	16	Customer IT dependency	$210,747	invoiceable on certification
MER-M058	warranty commencement	2024-10	10	Customer IT dependency	$21,939	invoiceable on certification
MER-M059	network readiness certified	2026-10	27	network provisioning	$266,377	no payment attached
MER-M060	pilot acceptance	2024-04	31	no delay	$219,087	invoiceable on acceptance
MER-M061	full acceptance	2026-03	29	labour agreement	$250,191	invoiceable on

Meridian milestone reference	Milestone	Planned	Slip days	Slip cause	Value attached	Payment trigger
						acceptance
MER-M062	units delivered	2025-04	23	Customer IT dependency	$157,215	no payment attached
MER-M063	warranty commencement	2026-04	23	network provisioning	$127,273	invoiceable on certification
MER-M064	steady-state handover	2024-12	21	seasonal freeze	$148,013	no payment attached
MER-M065	units delivered	2026-04	12	facility readiness	$42,843	invoiceable on acceptance
MER-M066	full acceptance	2025-09	32	network provisioning	$27,575	invoiceable on acceptance
MER-M067	warranty commencement	2025-01	11	seasonal freeze	$50,890	no payment attached
MER-M068	warranty commencement	2024-04	16	seasonal freeze	$28,748	invoiceable on certification
MER-M069	network readiness certified	2025-03	9	network provisioning	$131,580	invoiceable on acceptance
MER-M070	steady-state handover	2026-08	10	facility readiness	$188,015	invoiceable on acceptance
MER-M071	site survey complete	2024-08	29	facility readiness	$263,610	no payment attached
MER-M072	full acceptance	2024-05	4	Customer IT dependency	$103,235	invoiceable on certification
MER-M073	units delivered	2025-02	16	seasonal freeze	$144,546	no payment attached
MER-M074	steady-state handover	2025-12	16	labour agreement	$111,417	no payment attached
MER-M075	units delivered	2025-01	23	seasonal freeze	$74,294	invoiceable on certification
MER-M076	network readiness certified	2025-04	18	seasonal freeze	$136,646	invoiceable on acceptance
MER-M077	site survey complete	2025-01	28	labour agreement	$219,130	no payment attached
MER-M078	network readiness certified	2026-10	26	network provisioning	$19,379	invoiceable on certification
MER-M079	site survey complete	2025-05	19	facility readiness	$130,343	invoiceable on certification
MER-M080	network readiness certified	2024-03	12	facility readiness	$249,639	no payment attached
MER-M081	site survey complete	2024-05	31	facility readiness	$226,866	invoiceable on acceptance
MER-M082	pilot acceptance	2024-01	22	no delay	$144,413	invoiceable on acceptance
MER-M083	full acceptance	2024-12	11	seasonal freeze	$56,445	no payment attached
MER-M084	integration test passed	2025-01	23	no delay	$101,488	invoiceable on acceptance
MER-M085	warranty commencement	2024-06	9	no delay	$18,241	invoiceable on certification
MER-M086	units delivered	2025-07	18	seasonal freeze	$242,216	invoiceable on certification

4. Fees, invoicing and escalation

Meridian has agreed, and the Provider has accepted, that the Provider may substitute a component of equivalent or better specification, but may not substitute one that reduces throughput, safety rating or serviceability without written consent. As to enforcement, the remedy is exclusive for the breach it addresses, and does not displace remedies for a different breach of the same article. 4 sites in Tennessee means Meridian applies the Data Processing and Security Exhibit through its regional operations team rather than through head office. Notices under Article 4 (Orders and Quantities) go to the contracting entity named in the recital and not to any Meridian affiliate that may operate a site.

Article 12 (Intellectual Property) provides that each Unit is delivered configured to the specification identified in the applicable Order, and a Unit delivered otherwise is not deemed delivered until reconfigured at the Provider's cost. Operationally, where the parties disagree on whether the standard has been met, the dispute goes to the escalation ladder before any termination right arises. Because Meridian is a Tennessee apparel fulfilment business with 4 sites, the Data

Processing and Security Exhibit devolves this to the site manager. The obligation as it applies to Meridian was tightened at signature, and Article 4 (Orders and Quantities) carries the negotiated wording rather than the standard wording.

On a proper construction of Exhibit A, the Provider may substitute a component of equivalent or better specification, but may not substitute one that reduces throughput, safety rating or serviceability without written consent. Strictly, an estoppel does not arise from the Customer's forbearance, and a waiver is effective only in writing signed by an authorised officer. 4 sites in Tennessee means Meridian applies the Data Processing and Security Exhibit through its regional operations team rather than through head office. The Meridian relationship is managed against Article 14 (Indemnities) at each quarterly review, and any variance is minuted there rather than in the Order.

Where Article 2 (Definitions) applies, the Provider indemnifies the Customer against a third-party claim that the Units infringe an intellectual property right, and may procure a licence, modify, or replace to resolve it. Strictly, the remedy is exclusive for the breach it addresses, and does not displace remedies for a different breach of the same article. Meridian treats the obligation as a site-level matter across its 4 sites in Tennessee, consistent with the Data Processing and Security Exhibit. The obligation as it applies to Meridian was tightened at signature, and Article 8 (Acceptance) carries the negotiated wording rather than the standard wording.

5. Service levels and credits

Meridian acknowledges that spare parts are held at the levels stated in the service exhibit, and a stock-out that causes downtime is treated as a Provider-caused outage for credit purposes. On the negotiated text, a failure here is remediable, and the cure period runs from receipt of notice rather than from the breach itself. Operating 4 sites, Meridian applies the Data Processing and Security Exhibit at the point of delivery, as apparel fulfilment practice requires. Notices under Article 5 (Delivery and Title) go to the contracting entity named in the recital and not to any Meridian affiliate that may operate a site.

As between Meridian and the Provider, either party may terminate for a material breach not remedied within the cure period, and the terminating party's other remedies are unaffected by having terminated. Materially, the article is severable, and its unenforceability in one jurisdiction does not affect its operation elsewhere. Meridian treats the obligation as a site-level matter across its 4 sites in Tennessee, consistent with the Data Processing and Security Exhibit. Because Meridian operates in apparel fulfilment, the practical burden of this clause falls on its Tennessee operation, and Article 3 (Scope of Supply) governs how it is measured.

The parties have recorded in Exhibit A that personnel attending a site comply with the Customer's safety induction, and the Provider remains responsible for their acts whether they are employees or subcontractors. On the mechanics, time is of the essence for this obligation, which the parties recorded expressly because the default position would be otherwise. This bites at Meridian's 4 sites, since a apparel fulfilment operator administers the Data Processing and Security Exhibit where the units work. Where Meridian has raised a query the Provider has answered by reference to Article 12 (Intellectual Property), and the exchange is on the contract file.

On the terms of Schedule 2, the Provider indemnifies the Customer against a third-party claim that the Units infringe an intellectual property right, and may procure a licence, modify, or replace to resolve it. Tighter here than standard: performance is measured against the exhibit and not against any statement made in the parties' correspondence. In apparel fulfilment the burden of this sits with operations, and Meridian discharges it across 4 sites under the Data Processing and Security Exhibit. The Meridian relationship is managed against Article 15 (Limitation of Liability) at each quarterly review, and any variance is minuted there rather than in the Order.

6. Acceptance and change control

Meridian pays the fees under Schedule 3 in consideration of the Provider's undertaking that confidential information is used only for the purposes of the agreement, disclosed only to those who need it, and returned or destroyed on request at the end of the term. As a remedy, the remedy is exclusive for the breach it addresses, and does not displace remedies for a different breach of the same article. This bites at Meridian's 4 sites, since a apparel fulfilment operator administers the Data Processing and Security Exhibit where the units work. The Meridian file records the position as at the last amendment, and Article 3 (Scope of Supply) is the reference a reviewer should cite when raising it.

Article 15 (Limitation of Liability) of the Data Processing and Security Exhibit is to be construed so that the fees are payable within the period stated in the fee exhibit, and interest accrues on a late payment at the rate stated there without further demand. On timing, the provision survives termination for the period stated, and the survival is not conditional on the reason for termination. For Meridian, a apparel fulfilment operator running 4 sites out of Tennessee, the point matters because the Data Processing and Security Exhibit is administered site by site. The Meridian relationship is managed against Article 9 (Customer Obligations) at each quarterly review, and any variance is minuted there rather than in the Order.

On a proper construction of Exhibit B, the Provider furnishes evidence of the insurances required before the first Unit is delivered, and maintains them for the term and for two years afterwards. By way of qualification, performance is measured against the exhibit and not against any statement made in the parties' correspondence. Operating 4 sites, Meridian applies the Data Processing and Security Exhibit at the point of delivery, as apparel fulfilment practice requires. Because Meridian operates in apparel fulfilment, the practical burden of this clause falls on its Tennessee operation, and Article 9 (Customer Obligations) governs how it is measured.

Article 17 (Transition Assistance) provides that the Provider notifies the Customer of a security incident affecting Customer data within the period stated in the security exhibit, with the facts then known and without waiting for completeness. Tighter here than standard: where the parties disagree on whether the standard has been met, the dispute goes to the escalation ladder before any termination right arises. For Meridian, a apparel fulfilment operator running 4 sites out of Tennessee, the point matters because the Data Processing and Security Exhibit is administered site by site. Where Meridian has raised a query the Provider has answered by reference to Article 2 (Definitions), and the exchange is on the contract file.

Meridian data processing exhibit - Exhibit C - Service Levels and Credit Ladder

Meridian service level	Measure	Commitment	Credit per breach	Monthly credit cap	Exclusion	Escalated remedy
MER-L001	availability	93.8%	5% of monthly fee	6% of monthly fee	no exclusion	credit then termination right
MER-L002	resolution time	97.4%	11% of monthly fee	17% of monthly fee	excluding force majeure	credit then termination right
MER-L003	response time	90.1%	11% of monthly fee	18% of monthly fee	excluding Customer-caused outage	credit then termination right
MER-L004	resolution time	94.8%	3% of monthly fee	10% of monthly fee	excluding scheduled maintenance	credit only
MER-L005	resolution time	91.8%	6% of monthly fee	6% of monthly fee	excluding force majeure	credit only
MER-L006	resolution time	94.2%	7% of monthly fee	28% of monthly fee	no exclusion	credit only
MER-L007	resolution time	95.4%	6% of monthly fee	11% of monthly fee	excluding Customer-caused outage	credit then termination right
MER-L008	resolution time	95.0%	8% of monthly fee	30% of monthly fee	no exclusion	credit only
MER-L009	response time	92.8%	12% of monthly fee	14% of monthly fee	excluding scheduled maintenance	credit only
MER-L010	throughput	91.1%	11% of monthly fee	18% of monthly fee	excluding Customer-caused outage	credit only
MER-L011	availability	97.1%	11% of monthly fee	7% of monthly fee	excluding Customer-caused outage	credit then termination right
MER-L012	resolution time	92.8%	4% of monthly fee	24% of monthly fee	excluding Customer-caused outage	credit then termination right
MER-L013	response time	90.1%	10% of monthly fee	20% of monthly fee	excluding scheduled maintenance	credit then termination right
MER-L014	resolution time	95.4%	11% of monthly fee	10% of monthly fee	excluding force majeure	credit only
MER-L015	throughput	97.6%	9% of monthly fee	26% of monthly fee	no exclusion	credit only

Meridian service level	Measure	Commitment	Credit per breach	Monthly credit cap	Exclusion	Escalated remedy
MER-L016	throughput	97.7%	7% of monthly fee	12% of monthly fee	no exclusion	credit then termination right
MER-L017	throughput	92.6%	1% of monthly fee	11% of monthly fee	excluding force majeure	credit only
MER-L018	response time	90.4%	4% of monthly fee	26% of monthly fee	no exclusion	credit only
MER-L019	throughput	93.6%	1% of monthly fee	24% of monthly fee	excluding scheduled maintenance	credit then termination right
MER-L020	availability	97.1%	8% of monthly fee	10% of monthly fee	no exclusion	credit then termination right
MER-L021	throughput	98.8%	9% of monthly fee	9% of monthly fee	no exclusion	credit only
MER-L022	throughput	93.2%	3% of monthly fee	13% of monthly fee	excluding Customer-caused outage	credit only
MER-L023	response time	95.4%	12% of monthly fee	24% of monthly fee	excluding scheduled maintenance	credit then termination right
MER-L024	response time	97.5%	7% of monthly fee	27% of monthly fee	excluding Customer-caused outage	credit only
MER-L025	throughput	93.8%	1% of monthly fee	26% of monthly fee	no exclusion	credit then termination right
MER-L026	resolution time	90.5%	11% of monthly fee	23% of monthly fee	excluding Customer-caused outage	credit then termination right
MER-L027	throughput	91.8%	11% of monthly fee	23% of monthly fee	excluding scheduled maintenance	credit only
MER-L028	response time	93.2%	3% of monthly fee	15% of monthly fee	excluding scheduled maintenance	credit then termination right
MER-L029	throughput	93.2%	12% of monthly fee	7% of monthly fee	excluding Customer-caused outage	credit only
MER-L030	throughput	91.1%	8% of monthly fee	27% of monthly fee	excluding scheduled maintenance	credit then termination right
MER-L031	response time	98.9%	5% of monthly fee	8% of monthly fee	excluding scheduled maintenance	credit only
MER-L032	availability	97.2%	11% of monthly fee	16% of monthly fee	excluding scheduled maintenance	credit then termination right
MER-L033	resolution time	97.7%	2% of monthly fee	22% of monthly fee	no exclusion	credit then termination right
MER-L034	response time	96.2%	8% of monthly fee	6% of monthly fee	excluding scheduled maintenance	credit only
MER-L035	availability	90.2%	9% of monthly fee	29% of monthly fee	excluding scheduled maintenance	credit only
MER-L036	throughput	98.3%	1% of monthly fee	14% of monthly fee	excluding force majeure	credit then termination right
MER-L037	availability	92.0%	6% of monthly fee	29% of monthly fee	excluding force majeure	credit only
MER-L038	resolution time	97.1%	8% of monthly fee	30% of monthly fee	excluding Customer-caused outage	credit then termination right
MER-L039	availability	91.7%	3% of monthly fee	16% of monthly fee	excluding scheduled maintenance	credit only
MER-L040	availability	91.5%	4% of monthly fee	17% of monthly fee	excluding force majeure	credit only
MER-L041	availability	91.2%	10% of monthly fee	20% of monthly fee	no exclusion	credit then termination right
MER-L042	response time	97.0%	10% of monthly fee	19% of monthly fee	excluding Customer-caused	credit only

Meridian service level	Measure	Commitment	Credit per breach	Monthly credit cap	Exclusion	Escalated remedy
					outage	
MER-L043	response time	90.9%	5% of monthly fee	17% of monthly fee	excluding force majeure	credit then termination right
MER-L044	response time	92.8%	3% of monthly fee	29% of monthly fee	excluding Customer-caused outage	credit only
MER-L045	throughput	97.7%	8% of monthly fee	15% of monthly fee	excluding Customer-caused outage	credit only
MER-L046	resolution time	95.4%	3% of monthly fee	10% of monthly fee	excluding Customer-caused outage	credit only
MER-L047	resolution time	91.1%	8% of monthly fee	25% of monthly fee	excluding Customer-caused outage	credit then termination right
MER-L048	response time	96.5%	1% of monthly fee	14% of monthly fee	no exclusion	credit then termination right
MER-L049	response time	91.0%	11% of monthly fee	23% of monthly fee	excluding Customer-caused outage	credit then termination right
MER-L050	availability	91.8%	7% of monthly fee	7% of monthly fee	excluding Customer-caused outage	credit then termination right
MER-L051	resolution time	95.3%	12% of monthly fee	22% of monthly fee	no exclusion	credit only
MER-L052	response time	93.6%	6% of monthly fee	10% of monthly fee	no exclusion	credit then termination right
MER-L053	availability	97.6%	11% of monthly fee	9% of monthly fee	excluding scheduled maintenance	credit only
MER-L054	resolution time	93.2%	8% of monthly fee	26% of monthly fee	no exclusion	credit then termination right
MER-L055	response time	91.8%	12% of monthly fee	12% of monthly fee	excluding scheduled maintenance	credit then termination right
MER-L056	availability	95.1%	2% of monthly fee	20% of monthly fee	excluding force majeure	credit then termination right
MER-L057	resolution time	91.8%	9% of monthly fee	26% of monthly fee	excluding force majeure	credit then termination right
MER-L058	throughput	90.0%	4% of monthly fee	11% of monthly fee	excluding scheduled maintenance	credit then termination right
MER-L059	availability	97.6%	6% of monthly fee	24% of monthly fee	no exclusion	credit only
MER-L060	response time	94.0%	11% of monthly fee	11% of monthly fee	excluding Customer-caused outage	credit then termination right
MER-L061	availability	95.8%	6% of monthly fee	11% of monthly fee	no exclusion	credit then termination right
MER-L062	throughput	95.6%	7% of monthly fee	29% of monthly fee	excluding scheduled maintenance	credit then termination right
MER-L063	throughput	91.7%	1% of monthly fee	6% of monthly fee	excluding Customer-caused outage	credit only
MER-L064	response time	95.2%	5% of monthly fee	14% of monthly fee	excluding scheduled maintenance	credit then termination right
MER-L065	throughput	91.1%	6% of monthly fee	14% of monthly fee	no exclusion	credit only
MER-L066	availability	94.8%	1% of monthly fee	28% of monthly fee	excluding force majeure	credit then termination right
MER-L067	availability	92.8%	10% of monthly fee	20% of monthly fee	excluding Customer-caused outage	credit then termination right
MER-L068	response time	98.6%	5% of monthly fee	6% of monthly fee	no exclusion	credit then termination right
MER-L069	throughput	94.6%	12% of monthly fee	18% of monthly fee	excluding force majeure	credit then termination right

Meridian service level	Measure	Commitment	Credit per breach	Monthly credit cap	Exclusion	Escalated remedy
MER-L070	throughput	93.8%	6% of monthly fee	5% of monthly fee	no exclusion	credit only
MER-L071	availability	94.7%	5% of monthly fee	14% of monthly fee	no exclusion	credit only
MER-L072	availability	90.5%	7% of monthly fee	16% of monthly fee	no exclusion	credit only
MER-L073	availability	94.6%	10% of monthly fee	20% of monthly fee	excluding Customer-caused outage	credit only
MER-L074	resolution time	96.9%	7% of monthly fee	30% of monthly fee	no exclusion	credit only
MER-L075	throughput	93.3%	8% of monthly fee	5% of monthly fee	excluding force majeure	credit then termination right
MER-L076	throughput	98.7%	6% of monthly fee	21% of monthly fee	no exclusion	credit then termination right
MER-L077	availability	93.0%	11% of monthly fee	5% of monthly fee	excluding force majeure	credit only
MER-L078	availability	96.8%	6% of monthly fee	29% of monthly fee	no exclusion	credit only
MER-L079	response time	95.4%	4% of monthly fee	6% of monthly fee	excluding Customer-caused outage	credit only
MER-L080	throughput	91.9%	8% of monthly fee	17% of monthly fee	excluding force majeure	credit then termination right

7. Data, intellectual property and licences

Read with Exhibit C, spare parts are held at the levels stated in the service exhibit, and a stock-out that causes downtime is treated as a Provider-caused outage for credit purposes. In effect, the remedy is exclusive for the breach it addresses, and does not displace remedies for a different breach of the same article. This bites at Meridian's 4 sites, since a apparel fulfilment operator administers the Data Processing and Security Exhibit where the units work. Because Meridian operates in apparel fulfilment, the practical burden of this clause falls on its Tennessee operation, and Article 8 (Acceptance) governs how it is measured.

The Provider has undertaken to Meridian that the limitation of liability applies to claims of every kind except those expressly carved out, and the carve-outs are exhaustive rather than illustrative. On any reading, performance is measured against the exhibit and not against any statement made in the parties' correspondence. This bites at Meridian's 4 sites, since a apparel fulfilment operator administers the Data Processing and Security Exhibit where the units work. Meridian has taken the point up once since signature; the correspondence is filed against Article 12 (Intellectual Property) and did not result in an amendment.

Read with Schedule 2, the Provider maintains the availability commitment measured over each calendar month, excluding only the outage categories expressly listed, and reports the measurement within ten business days. On the negotiated text, a failure here is remediable, and the cure period runs from receipt of notice rather than from the breach itself. Running 4 sites in apparel fulfilment, Meridian takes this obligation at site level rather than centrally under the Data Processing and Security Exhibit. For a customer of Meridian's size the clause is unremarkable, but Article 3 (Scope of Supply) is drafted more tightly here than in the Provider's standard form.

Meridian is not obliged, under Exhibit D, to accept that the limitation of liability applies to claims of every kind except those expressly carved out, and the carve-outs are exhaustive rather than illustrative. Intended effect: the provision survives termination for the period stated, and the survival is not conditional on the reason for termination. For Meridian, a apparel fulfilment operator running 4 sites out of Tennessee, the point matters because the Data Processing and Security Exhibit is administered site by site. The Meridian relationship is managed against Article 10 (Change Control) at each quarterly review, and any variance is minuted there rather than in the Order.

8. Indemnities and limitation of liability

Meridian has agreed, and the Provider has accepted, that the fees are payable within the period stated in the fee exhibit, and interest accrues on a late payment at the rate stated there without further demand. In point of remedy, the remedy is exclusive for the breach it addresses, and does not displace remedies for a different breach of the same article.

Running 4 sites in apparel fulfilment, Meridian takes this obligation at site level rather than centrally under the Data Processing and Security Exhibit. For a customer of Meridian's size the clause is unremarkable, but Article 8 (Acceptance) is drafted more tightly here than in the Provider's standard form.

Meridian acknowledges that acceptance testing runs against the protocol annexed to the Order, and a test conducted against any other protocol does not constitute acceptance however the parties may have described it. On any reading, performance is measured against the exhibit and not against any statement made in the parties' correspondence. Tennessee is where Meridian runs apparel fulfilment operations across 4 sites, and the Data Processing and Security Exhibit follows that footprint. The Meridian relationship is managed against Article 8 (Acceptance) at each quarterly review, and any variance is minuted there rather than in the Order.

Meridian bears the risk that acceptance testing runs against the protocol annexed to the Order, and a test conducted against any other protocol does not constitute acceptance however the parties may have described it. Textually, where the parties disagree on whether the standard has been met, the dispute goes to the escalation ladder before any termination right arises. Operating 4 sites, Meridian applies the Data Processing and Security Exhibit at the point of delivery, as apparel fulfilment practice requires. Where Meridian has raised a query the Provider has answered by reference to Article 17 (Transition Assistance), and the exchange is on the contract file.

Meridian bears the risk that the Provider indemnifies the Customer against a third-party claim that the Units infringe an intellectual property right, and may procure a licence, modify, or replace to resolve it. On the wording, the article is severable, and its unenforceability in one jurisdiction does not affect its operation elsewhere. For Meridian, a apparel fulfilment operator running 4 sites out of Tennessee, the point matters because the Data Processing and Security Exhibit is administered site by site. Administration of this obligation for Meridian sits with the account team rather than with central contracts, and Article 7 (Service Levels) is where it is evidenced.

Meridian data processing exhibit - Exhibit D - Component Prices, Lead Times and Sourcing

Meridian price line	Part number	Description	Unit price	Lead time weeks	MOQ	Sourcing	End-of-life notice
MER-P0001	part 6104-R	gearbox	$1,246	15	200	dual sourced	no EOL commitment
MER-P0002	part 1590-N	drive unit	$541	11	200	dual sourced	last-time-buy notice 12 months
MER-P0003	part 9347-P	harness	$657	17	250	dual sourced	EOL notice 6 months
MER-P0004	part 7855-T	drive unit	$2,080	23	200	dual sourced	no EOL commitment
MER-P0005	part 7767-Y	controller board	$1,264	16	400	qualification in progress	EOL notice 6 months
MER-P0006	part 3181-E	encoder	$2,344	13	150	single source	last-time-buy notice 12 months
MER-P0007	part 7581-H	gearbox	$90	10	500	single source	no EOL commitment
MER-P0008	part 9093-T	harness	$2,265	10	50	dual sourced	EOL notice 6 months
MER-P0009	part 2837-I	castor assembly	$2,309	8	400	qualification in progress	EOL notice 6 months
MER-P0010	part 2697-L	gearbox	$1,372	14	300	dual sourced	EOL notice 6 months
MER-P0011	part 2940-T	harness	$1,533	17	350	qualification in progress	EOL notice 6 months
MER-P0012	part 3242-T	drive unit	$345	5	350	single source	no EOL commitment
MER-P0013	part 3244-C	castor assembly	$1,099	5	450	qualification in progress	EOL notice 6 months
MER-P0014	part 5801-Y	drive unit	$857	14	450	single source	EOL notice 6 months
MER-P0015	part 5599-Y	harness	$445	22	500	dual sourced	EOL notice 6 months
MER-P0016	part 4715-I	encoder	$1,104	18	600	qualification in progress	no EOL commitment
MER-P0017	part 7563-D	harness	$2,368	11	300	qualification in progress	last-time-buy notice 12

Meridian price line	Part number	Description	Unit price	Lead time weeks	MOQ	Sourcing	End-of-life notice
							months
MER-P0018	part 8734-E	harness	$2,031	9	350	single source	last-time-buy notice 12 months
MER-P0019	part 8340-D	battery module	$1,395	9	250	qualification in progress	no EOL commitment
MER-P0020	part 9708-P	encoder	$603	6	600	single source	no EOL commitment
MER-P0021	part 4555-X	castor assembly	$581	7	500	dual sourced	no EOL commitment
MER-P0022	part 6512-E	optical sensor	$1,575	22	350	qualification in progress	last-time-buy notice 12 months
MER-P0023	part 9708-A	optical sensor	$157	20	550	single source	EOL notice 6 months
MER-P0024	part 9192-E	drive unit	$462	18	50	dual sourced	EOL notice 6 months
MER-P0025	part 3487-Q	castor assembly	$777	21	250	dual sourced	EOL notice 6 months
MER-P0026	part 8123-C	optical sensor	$231	6	250	single source	last-time-buy notice 12 months
MER-P0027	part 2685-V	encoder	$514	23	500	single source	no EOL commitment
MER-P0028	part 6153-Z	battery module	$1,657	16	300	dual sourced	no EOL commitment
MER-P0029	part 7222-S	castor assembly	$1,739	7	150	qualification in progress	EOL notice 6 months
MER-P0030	part 7349-O	optical sensor	$101	25	600	single source	EOL notice 6 months
MER-P0031	part 8738-O	harness	$105	10	50	single source	EOL notice 6 months
MER-P0032	part 2931-B	optical sensor	$2,405	17	450	single source	EOL notice 6 months
MER-P0033	part 5057-L	harness	$2,436	12	250	dual sourced	last-time-buy notice 12 months
MER-P0034	part 1619-G	controller board	$1,456	17	500	single source	no EOL commitment
MER-P0035	part 7508-I	optical sensor	$500	24	250	dual sourced	last-time-buy notice 12 months
MER-P0036	part 8384-G	battery module	$2,367	18	150	qualification in progress	EOL notice 6 months
MER-P0037	part 3203-E	battery module	$1,112	6	200	single source	last-time-buy notice 12 months
MER-P0038	part 3676-O	castor assembly	$95	11	550	qualification in progress	no EOL commitment
MER-P0039	part 4864-Z	harness	$2,259	6	100	dual sourced	last-time-buy notice 12 months
MER-P0040	part 5181-P	drive unit	$1,314	19	350	single source	no EOL commitment
MER-P0041	part 8842-Q	battery module	$1,188	5	200	single source	EOL notice 6 months
MER-P0042	part 3372-B	gearbox	$2,149	15	400	dual sourced	last-time-buy notice 12 months
MER-P0043	part 6950-I	optical sensor	$1,630	10	500	dual sourced	no EOL commitment
MER-P0044	part 2015-J	drive unit	$1,099	15	350	dual sourced	last-time-buy notice 12 months
MER-P0045	part 9846-S	castor assembly	$1,413	9	50	qualification in progress	EOL notice 6 months
MER-P0046	part 1552-P	battery module	$1,659	25	550	qualification in progress	no EOL commitment

8. Indemnities and limitation of liability - part 2 of 2

Because the 8. Indemnities and limitation of liability does not fit one page, its remainder is set out below under the same references. Pagination alone determines where it falls.

Scope, cut-off and units for the 8. Indemnities and limitation of liability were fixed at its first part and are not repeated, being unaltered. Pagination alone determines where it falls.

Meridian data processing exhibit - Exhibit D - Component Prices, Lead Times and Sourcing (continued, part 2 of 2)

Meridian price line	Part number	Description	Unit price	Lead time weeks	MOQ	Sourcing	End-of-life notice
MER-P0047	part 9010-K	controller board	$1,050	11	250	qualification in progress	EOL notice 6 months
MER-P0048	part 7935-D	battery module	$1,566	5	300	qualification in progress	last-time-buy notice 12 months
MER-P0049	part 4734-Y	encoder	$1,468	20	350	qualification in progress	last-time-buy notice 12 months
MER-P0050	part 8126-S	encoder	$956	20	550	dual sourced	last-time-buy notice 12 months
MER-P0051	part 8731-T	gearbox	$177	20	100	single source	last-time-buy notice 12 months
MER-P0052	part 6087-Y	gearbox	$96	24	300	qualification in progress	no EOL commitment
MER-P0053	part 4826-M	battery module	$429	7	50	dual sourced	no EOL commitment
MER-P0054	part 7040-L	controller board	$233	13	500	qualification in progress	no EOL commitment
MER-P0055	part 7823-K	drive unit	$1,690	23	250	single source	no EOL commitment
MER-P0056	part 8544-U	drive unit	$422	19	350	dual sourced	no EOL commitment
MER-P0057	part 5980-M	encoder	$439	21	550	single source	last-time-buy notice 12 months
MER-P0058	part 2421-P	controller board	$1,361	17	250	qualification in progress	last-time-buy notice 12 months
MER-P0059	part 5189-Y	optical sensor	$2,341	11	600	single source	no EOL commitment
MER-P0060	part 2539-M	harness	$2,248	23	150	qualification in progress	last-time-buy notice 12 months
MER-P0061	part 9730-G	controller board	$1,162	4	100	qualification in progress	EOL notice 6 months
MER-P0062	part 8942-L	battery module	$234	11	550	dual sourced	no EOL commitment
MER-P0063	part 7574-W	gearbox	$1,860	21	150	qualification in progress	last-time-buy notice 12 months
MER-P0064	part 3049-W	castor assembly	$1,080	14	400	dual sourced	no EOL commitment
MER-P0065	part 1962-C	gearbox	$1,865	5	150	single source	EOL notice 6 months
MER-P0066	part 7194-K	drive unit	$459	5	250	single source	last-time-buy notice 12 months
MER-P0067	part 4600-N	castor assembly	$629	20	150	qualification in progress	last-time-buy notice 12 months
MER-P0068	part 1214-L	harness	$803	19	450	single source	EOL notice 6 months
MER-P0069	part 5292-V	encoder	$2,396	17	350	dual sourced	EOL notice 6 months
MER-P0070	part 5276-J	optical sensor	$617	10	300	dual sourced	EOL notice 6 months
MER-P0071	part 7322-P	drive unit	$651	4	100	single source	no EOL

Meridian price line	Part number	Description	Unit price	Lead time weeks	MOQ	Sourcing	End-of-life notice
							commitment
MER-P0072	part 9560-L	controller board	$144	18	150	single source	last-time-buy notice 12 months
MER-P0073	part 3507-B	optical sensor	$1,370	16	200	single source	no EOL commitment
MER-P0074	part 5824-E	harness	$329	23	100	qualification in progress	no EOL commitment
MER-P0075	part 1838-F	harness	$1,741	22	500	dual sourced	EOL notice 6 months
MER-P0076	part 8017-K	drive unit	$2,239	19	550	qualification in progress	EOL notice 6 months
MER-P0077	part 9007-K	harness	$1,675	18	400	qualification in progress	EOL notice 6 months
MER-P0078	part 1408-O	battery module	$1,455	13	300	single source	no EOL commitment
MER-P0079	part 9067-O	encoder	$1,202	21	450	single source	last-time-buy notice 12 months
MER-P0080	part 4625-X	battery module	$2,046	24	350	qualification in progress	no EOL commitment
MER-P0081	part 1315-F	battery module	$1,765	7	150	qualification in progress	last-time-buy notice 12 months
MER-P0082	part 6844-Z	battery module	$1,091	9	400	qualification in progress	last-time-buy notice 12 months
MER-P0083	part 2717-S	gearbox	$1,593	21	150	dual sourced	last-time-buy notice 12 months
MER-P0084	part 3910-X	harness	$620	5	600	qualification in progress	no EOL commitment
MER-P0085	part 5285-A	controller board	$2,193	23	150	qualification in progress	no EOL commitment
MER-P0086	part 6913-S	optical sensor	$892	24	350	qualification in progress	last-time-buy notice 12 months
MER-P0087	part 2534-O	encoder	$1,775	10	150	dual sourced	EOL notice 6 months
MER-P0088	part 1561-R	drive unit	$664	25	350	single source	last-time-buy notice 12 months
MER-P0089	part 5004-E	gearbox	$2,290	20	150	dual sourced	no EOL commitment
MER-P0090	part 5580-S	castor assembly	$2,179	22	550	qualification in progress	last-time-buy notice 12 months
MER-P0091	part 1048-J	encoder	$1,874	15	300	qualification in progress	EOL notice 6 months
MER-P0092	part 8315-J	gearbox	$1,050	4	550	single source	EOL notice 6 months

9. Term, termination and transition

Meridian and the Provider agree that each Unit is delivered configured to the specification identified in the applicable Order, and a Unit delivered otherwise is not deemed delivered until reconfigured at the Provider's cost. Textually, the article is severable, and its unenforceability in one jurisdiction does not affect its operation elsewhere. In apparel fulfilment the burden of this sits with operations, and Meridian discharges it across 4 sites under the Data Processing and Security Exhibit. Because Meridian operates in apparel fulfilment, the practical burden of this clause falls on its Tennessee operation, and Article 10 (Change Control) governs how it is measured.

Subject to Article 13 (Licences), on expiry the Provider provides transition assistance for the period stated, at the rates in the fee exhibit, and does not withhold cooperation pending a payment dispute. On the operative wording, where the parties disagree on whether the standard has been met, the dispute goes to the escalation ladder before any termination right arises. Because Meridian is a Tennessee apparel fulfilment business with 4 sites, the Data Processing and Security

Exhibit devolves this to the site manager. The Meridian relationship is managed against Article 18 (Assignment) at each quarterly review, and any variance is minuted there rather than in the Order.

For the purposes of the Data Processing and Security Exhibit, each Unit is delivered configured to the specification identified in the applicable Order, and a Unit delivered otherwise is not deemed delivered until reconfigured at the Provider's cost. In point of remedy, the provision survives termination for the period stated, and the survival is not conditional on the reason for termination. Running 4 sites in apparel fulfilment, Meridian takes this obligation at site level rather than centrally under the Data Processing and Security Exhibit. For a customer of Meridian's size the clause is unremarkable, but Article 18 (Assignment) is drafted more tightly here than in the Provider's standard form.

Under Article 11 (Data and Telemetry) of the Data Processing and Security Exhibit, each Unit is delivered configured to the specification identified in the applicable Order, and a Unit delivered otherwise is not deemed delivered until reconfigured at the Provider's cost. Intended effect: the article is severable, and its unenforceability in one jurisdiction does not affect its operation elsewhere. Operating 4 sites, Meridian applies the Data Processing and Security Exhibit at the point of delivery, as apparel fulfilment practice requires. Administration of this obligation for Meridian sits with the account team rather than with central contracts, and Article 4 (Orders and Quantities) is where it is evidenced.

10. Assignment, notices and general

Article 6 (Fees and Payment) of the Data Processing and Security Exhibit is to be construed so that the fees are payable within the period stated in the fee exhibit, and interest accrues on a late payment at the rate stated there without further demand. On timing, performance is measured against the exhibit and not against any statement made in the parties' correspondence. Operating 4 sites, Meridian applies the Data Processing and Security Exhibit at the point of delivery, as apparel fulfilment practice requires. Notices under Article 14 (Indemnities) go to the contracting entity named in the recital and not to any Meridian affiliate that may operate a site.

Meridian pays the fees under Schedule 3 in consideration of the Provider's undertaking that each Unit is delivered configured to the specification identified in the applicable Order, and a Unit delivered otherwise is not deemed delivered until reconfigured at the Provider's cost. Procedurally, the provision survives termination for the period stated, and the survival is not conditional on the reason for termination. This bites at Meridian's 4 sites, since a apparel fulfilment operator administers the Data Processing and Security Exhibit where the units work. The Meridian file records the position as at the last amendment, and Article 3 (Scope of Supply) is the reference a reviewer should cite when raising it.

The parties have recorded in Exhibit A that personnel attending a site comply with the Customer's safety induction, and the Provider remains responsible for their acts whether they are employees or subcontractors. Intended effect: the article is severable, and its unenforceability in one jurisdiction does not affect its operation elsewhere. Meridian treats the obligation as a site-level matter across its 4 sites in Tennessee, consistent with the Data Processing and Security Exhibit. Notices under Article 20 (Notices) go to the contracting entity named in the recital and not to any Meridian affiliate that may operate a site.

Article 11 (Data and Telemetry) of the Data Processing and Security Exhibit is to be construed so that the fees are payable within the period stated in the fee exhibit, and interest accrues on a late payment at the rate stated there without further demand. In application, the provision survives termination for the period stated, and the survival is not conditional on the reason for termination. Meridian runs 4 sites from Tennessee in apparel fulfilment, so the Data Processing and Security Exhibit is administered locally and this clause is applied per site. Because Meridian operates in apparel fulfilment, the practical burden of this clause falls on its Tennessee operation, and Article 2 (Definitions) governs how it is measured.